REPORTABLE (22)

(1) PALLEMATIC FREIGHT t/a LITTLE FUNE (PRIVATE) LIMITED (2) WELSHMAN NCUBE
v
(1) HON MAGISTRATE MAXWELL NCUBE (2) CROSSMIL ENTERPRISES (PRIVATE) LIMITED (3) MESSENGER OF COURT

SUPREME COURT OF ZIMBABWE
GWAUNZA DCJ, MAVANGIRA JA & CHIWESHE JA
HARARE: 22 NOVEMBER 2023

M. E. P Moyo, for the appellants

No appearance, for the first and third respondents

T. Chimusaru, for the second respondent.

MAVANGIRA JA:

1. This is an appeal against the whole judgment of the High Court (the court *a quo*) dated 31 August, 2023, which dismissed an urgent application for stay of execution made by the appellants. The dismissal was on the basis of a preliminary objection founded on the doctrine of peremption raised by the second respondent. At the hearing of this appeal, this Court dismissed the appeal in its entirety and indicated that the reasons therefor would follow. These are they:

FACTUAL BACKGROUND

2. The first appellant is a company duly incorporated in terms of the laws of Zimbabwe. The second appellant is a male adult, a citizen of Zimbabwe and a guarantor of the first appellant. The first respondent is cited in his official capacity as a magistrate. The second respondent is

a company duly incorporated in terms of the laws of Zimbabwe. The third respondent is cited in his official capacity as the messenger of court.

3. The first and second appellants (the appellants) filed an urgent chamber application seeking a stay of execution of a judgment which had been granted in favour of the second respondent. The said judgment was granted pending the determination of a review application in HC 1459/23 and an appeal in HCA 71/23, both of which had been lodged against that judgment. The factual background to the urgent chamber application follows hereunder.

4. The appellants and the second respondent were in a lessor–lessee relationship. A dispute arose between them. The second respondent sought, from the Magistrates Court, an order for the appellants' eviction from four fuel service stations on the basis of non-payment of rentals. The second respondent also sought the cancellation of the lease agreement subsisting between the parties. The appellants failed to defend the proceedings, and a default judgment was accordingly entered in favour of the second respondent. The default judgment was couched in the following terms:

   (i) Cancellation of the lease agreement entered into and between the parties on 2 August 2018 and any other subsequent addendums.

   (ii) Payment in the sum of USD$3 727.37 being in respect of arrear rentals and ZWL 44 700.54 being in respect of arrear operating costs. Total arrears being USD $3 727.37 and ZWL44 700.54 payable as USD$ at the foreign exchange auction rate as at the date of judgment. (*sic*)

   (iii) Ejectment of the said plaintiff (*sic*) and all those claiming occupation through her from Unit 4 Service Station, No.36 J Chinamano road/Cardiff St Belmont Bulawayo.

(iv) Costs of suit.

(v) Holding over damages at the rate of US$1000.00 per month from 1 April 2022 payable as ZWL$ at the foreign exchange auction rate as at date of payment.

5. Thereafter, the appellants filed an application in the Magistrates Court for rescission of the default judgment and for stay of execution. The Magistrates Court granted an interim stay of execution pending confirmation or discharge on the return date. On the return date, the application for rescission was dismissed and the interim stay of execution was discharged. Dissatisfied with that outcome, the appellants noted an appeal in the court *a quo* under case number HCA 62/23. Around the same time, the second respondent filed an application in the Magistrates Court for leave to execute the default judgment pending the said appeal against the dismissal of the application for rescission. The application was granted by the first respondent. This prompted the appellants to note another appeal in the court *a quo* under case number HCA 71/23, challenging the grant of leave to execute pending appeal. The appellants also filed an application under HC 1459/23 for review of the judgment which granted leave to execute pending appeal.

6. The appellants thereafter filed in the court *a quo*, an urgent chamber application for stay of execution of the order by the first respondent, pending the finalization of the matters in HCA 62/23, HCA 71/23 and HC 1459/23. This is the application which forms the subject matter of the present appeal. The appellants argued that their matter was urgent. It was their submission that a warrant of execution had already been issued despite the fact that they had paid all of the judgment debt. The appellants also argued that there was no other remedy that

could give them instant relief other than the urgent chamber application. They further argued that their application for review and their intended appeals had good prospects of success.

7. The application for stay of execution was opposed by the second respondent, who raised several points *in limine*. Firstly, the second respondent contended that the urgent application was fatally defective in that it stipulated a *dies induciae* for the filing of opposing papers that was not sanctioned by the rules of court. Secondly, it was argued that the matter lacked urgency. In this regard, the second respondent submitted that the need to act arose on 26 July 2023, when leave to execute pending appeal was granted, yet the appellants only instituted the urgent application on 8 August 2023. The second respondent further raised the doctrine of peremption as a preliminary point, arguing that the appellants had forfeited their right to challenge the default judgment. This contention was premised on the assertion that the appellants had acquiesced in the default judgment debt, with the result that the appeals in HCA 62/23 and HCA 71/23, as well as the review application in HC 1459/23, were devoid of prospects of success.

8. On the merits, the second respondent submitted that the appellants were being unnecessarily litigious. It was the second respondent's further submission that the urgent chamber application sought to achieve the same result as the application for review that is setting aside of the judgment that granted leave to execute. The second respondent argued that in any event, the purported appeal in HCA 71/23, was a legal nullity as it sought to appeal against an order granting leave to execute without leave having been obtained.

9. In response to the preliminary points, the appellants maintained that the matter was urgent. They further contended that payment of the judgment debt had been made under protest and, as such, did not constitute acquiescence in the judgment. Accordingly, the appellants argued that the doctrine of peremption was inapplicable in the circumstances.

10. The court *a quo* upheld the second respondent's preliminary objection and dismissed the application on the basis of the doctrine of peremption. It reasoned that peremption serves the broader policy of finality in litigation, which is essential to the proper administration of justice. The court found that the appellants had paid the judgment debt, as evidenced by two receipts, although holding over damages, costs, and messenger of court's fees remained outstanding. It further held that the claim that payment was made under protest was an afterthought designed to defeat the peremption objection.

11. The court *a quo* further observed that all three proceedings constituted direct or indirect attacks on the default judgment, notwithstanding evidence that the appellants had paid the judgment debt, albeit with disputes as to whether liability had been fully discharged. The court held that, by making such payment, the appellants had acquiesced in the default judgment they now sought to challenge and could not simultaneously seek its rescission. Consequently, the review application and the appeals were found to have no reasonable prospects of success. In light of this conclusion, the court found it unnecessary to consider the remaining preliminary points, dismissed the application, and awarded costs against the appellants.

THIS APPEAL

12. Aggrieved by the decision of the court *a quo*, the appellants appealed to this Court on the following grounds of appeal:

GROUNDS OF APPEAL

1. The court *a quo* erred in fact and in law thus misdirecting itself when it upheld a point *in limine* that the payment made by the first appellant to the second respondent on 1 and 3 August 2023 was made in compliance with the entire judgment when the order itself had four distinct features that cannot be said to be complied with merely by the payment of the judgment debt. The distinct features being whether or not the lease should be cancelled, whether or not appellants should be ejected, whether or not appellants should pay costs of suit and the issue of holdover (*sic*) damages. The payment cannot be said to have been answering all these distinct features which are pleaded and proved separately and distinctly.
2. The court *a quo* erred in fact and in law when it held that the payment made on 1 and 3 August 2023 amounts to the appellants complying with the judgment and therefore disentitling the appellants from the relief they sought staying the judgment. The first respondent had ordered that the applicants to pay that amount pending appeal, that part of the order being interlocutory and not being final and dispositive of all other issues the applicants paid it as it could be paid back. It is a misdirection for the court *a quo* to hold that such payment in effect means the appeals and the review no longer have prospects of success, especially given that the first respondent had ordered that money be paid pending appeal, it could not have meant that in so paying, the appeal would worthless.

3. The court *a quo* erred as a matter of fact and law when it failed to appreciate that the appellants paid in protest, the protest being clear from the numerous appeals and contestations filed at the High Court. The matter being raised as a point of law the appellants had no chance to file affidavits stating the obvious point that payment had been made in protest. It was a misdirection by the court to hold that a submission by counsel was not permitted in the circumstances when the issue had not been raised by any of the papers in the papers. (*sic*)
4. The court *a quo* erred in making a finding that the appellant made payment in compliance of an order when there was no order to be in compliance with having been suspended by operation of law through the noting of appeals in HCA 62/23 and HCA 71/23.
5. The court *a quo* erred in fact and in law when it ignored the fact that the said leave to execute order was null and void as it resulted from irregular proceedings that are under review at the High Court such orders are null and void and cannot be complied with.
6. The court *a quo* erred in fact and in law when it held that the appellants had sought to have it both ways when the record is clear that the appellants had always contested the position and only paid pending appeal as they had been ordered to by the first respondent. Complying with that order pending appeal cannot be said to have been displaying any approbation and reprobation on the part of the appellants. Appellants had not paid and then sought to appeal. Appellants had appealed and reviewed till they were ordered to pay pending appeal by the first respondent.

The appellants seek the following relief:

RELIEF SOUGHT

1. That the appeal succeeds with costs.

2. That the judgment of the court *a quo* be overturned to read as follows:

   "The application be and is hereby granted."

SUBMISSIONS ON THE MERITS

13. At the hearing, Mr *Moyo*, for the appellants, argued that the doctrine of peremption was not applicable to the matter as there was no unequivocal consent to the judgment by the appellants. Counsel argued that after the first respondent's judgment had been handed down the appellants noted an appeal against the decision and this was indicative of the fact that they were opposed to the said judgment. He also submitted that the appellants only paid the money in fulfilment of the judgment of the first respondent in order to avoid execution being levied against their property. Counsel further argued that the appellants paid the amounts under duress and as such peremption could not apply as the appellants had shown, at all material times that they wanted to appeal.

14. *Per contra*, Mr *Chimusaru*, for the second respondent, submitted that the court *a quo* was correct in upholding the preliminary point raised by the second respondent relating to peremption. He argued that the two payments made towards satisfying the judgment debt and which were in conformity with the decision of the first respondent could only mean that they acquiesced in the judgment. Counsel also argued that the payment was not made in protest and the appellants could not claim that they paid to avoid execution.

ISSUES FOR DETERMINATION

15. The sole issue for determination before this Court is whether or not the court *a quo* erred in dismissing the urgent application for stay of execution on the basis of the doctrine of peremption.

APPLICATION OF THE LAW TO THE FACTS

16. It is clear that the default judgment granted by the Magistrate's Court lies at the center of the dispute. The proceedings originated in the Magistrate's Court. A default judgment was entered against the appellants. Dissatisfied with that outcome, the appellants launched a series of proceedings in the High Court, including appeals and a review application, all of which sought, either directly or indirectly, to impugn the default judgment. What this in effect shows is that the appellants' true aim was to challenge the default judgment, as the stay of execution would only be relevant if the underlying default judgment was successfully impugned. Thus, in effect, the urgent chamber application was essentially an indirect attack on the default judgment.

17. It was in the context of these pending challenges that the appellants approached the court *a quo* on an urgent basis for stay of execution of the judgment by the first respondent, which judgment allowed the second respondent to execute pending appeal. The court *a quo* dismissed the application on the basis of the doctrine of peremption. The determination of this appeal requires an examination of the doctrine of peremption and an assessment of whether, on the facts before the court *a quo*, the appellants could be said to have acquiesced in the default judgment.

18. The doctrine of peremption is a legal principle that prevents a person from challenging a judgment or order after they have, by their conduct, accepted it or acquiesced in it. Put differently, once a litigant acts in a way that shows that they are content with a judgment, they cannot later seek to attack it.

19. In *Dhliwayo* v *Warman Zimbabwe (Pvt) Ltd & Ors* HB 12/22 the court held as follows at p 9-10:

> "According to the common law doctrine of peremption, a party who acquiesces to a judgment cannot subsequently seek to challenge the judgment to which he has acquiesced. This doctrine is founded on the logic that no person may be allowed to opportunistically endorse two conflicting positions or to both approbate and reprobate, or to blow hot and cold. It may even be said that a party will not be allowed to have her cake and eat it too. Although the doctrine has its origin in appeals, the doctrine and its principles do apply equally in the case of rescission. See: *Zuma* v *Secretary of the Judicial Commission of Inquiry into Allegations of State Capture*, *Corruption and Fraud in the Public Sector Including Organs of State & Others* [2021] ZACC 28[1] para. 101.
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> The doctrine of peremption was enunciated in *Hlatswayo* v *Mare & Deas* 1912 AD 242 where Lord De Villiers held that 'where a man has two courses of action open to him and he unequivocally takes one he cannot afterwards turn back and take the other.'"

20. In *Mashangu (nee Chiwara)* v *Mashangu & Anor* HH 210/25 the court further held as follows:

> "Firstly, the doctrine of acquiescence stipulates that if a party complies with a court order, he or she loses the right to challenge it. The doctrine is part of our law and has been applied in this jurisdiction. This was settled by the Supreme Court in *Mining Commissioner -Masvingo N.O. & Others* v *Finer Diamond (Pvt) Ltd* SC 38/22.
>
> In the case of *Dhliwayo* v *Warman Zimbabwe (Pvt) Ltd* HB 12/22 this Court pronounced on this issue as follows:
>
> > 'According to the common law doctrine of peremption, a party who acquiesces to a judgment cannot subsequently seek to challenge a judgment in which he has acquiesced.'"

21. With regard to the doctrine of peremption, therefore, the authorities establish that a party who acts in a way that shows acceptance of or complies with a judgment cannot later seek to

challenge it. A litigant cannot approbate and reprobate. Furthermore, that the conduct showing acceptance must be clear and unambiguous. In *Tswelopele Non-Profit Organisation* v *City of Tshwane Metropolitan Municipality* 2007 (6) SA 511(SCA) at p.7, para 10, the Court dealt with whether an appeal had been perempted. The court held as follows:

> "Peremption of the right to challenge a judicial decision occurs when the losing litigant acquiesces in an adverse judgment. But before this can happen, the Court must be satisfied that the loser has acquiesced unequivocally in the judgment. The losing party's conduct must 'point indubitably and necessarily to the conclusion that he does not intend to attack the judgment': so the conduct relied on must be "unequivocal and must be inconsistent with any intention to appeal."

22. The appellants argue that the doctrine of peremption does not apply to their case. They contend that payment made in compliance with a court order, ordering the appellants to pay pending appeal, cannot be said to be payment negating an intention or desire to appeal. They also contend that, having been ordered to satisfy the judgment debt pending the determination of the appeal, their compliance with that order was not voluntary. Accordingly, the doctrine of peremption is inapplicable and cannot be invoked against them, so they argue. The appellants further argue that payment of the judgment was done in protest as seen by the numerous appeals lodged in the court *a quo*.

23. In *Commissioner for Inland Revenue* v *First National Industrial Bank Ltd* 1990 (3) SA 641 AD, the Court explained what a payment under protest constituted. The Court held as follows at p.649G-J:

> "The addition of the words 'under protest' when a payment is tendered can, so it seems, fulfil one or more of several functions:
>
> (i) The phrase can serve as confirmation that, in the broad sense, the payment was not a voluntary one or, in the narrower sense that it was due to duress. The failure so to stipulate could support an inference that the payment was voluntary or that in truth there was no duress.

(ii) It can serve to anticipate or negate an inference of acquiescence, lest it be thought that, by paying without protest, the *solvens* conceded the validity or the legality of the debt, or his liability to pay it, or the correctness of the amount claimed. The object is to reserve the right to seek to reverse the payment. The effect is not to create a new cause of action but to preserve and protect an existing one - namely, that the payment was an *indebitum solutum* which is recoverable in law, e.g. by means of the *condictio indebiti* or in terms of s 32(1)*(a)* of the Stamp Duties Act, 1968.

(iii) It could serve as the basis for an agreement between the parties on what should happen if the contested issue is tested and resolved in favour of the *solvens*. Such an agreement would indeed create a new and independent cause of action."

24. It is this Court's view that for a payment to be said to have been made under protest, the protest must be clear, unequivocal, and contemporaneous with the payment. When the payment was made *in casu*, the appellants never indicated that it was under protest. It was only in their answering affidavit *a quo* that they sought to argue that such payment did not constitute an admission of liability. This retrospective claim appears to be an afterthought on their part. It cannot negate the fact that their conduct at the time of payment demonstrated acquiescence in the default judgment.

25. The appellants paid the judgment debt after the application for leave to execute pending appeal had been granted in favour of the second respondent. They allegedly paid under duress and argued that payment was done to avoid execution against their property. The payment made satisfied the judgment debt, such conduct tending to demonstrate acceptance of the judgment. The case of *Mining Commissioner Masvingo NO* v *Finer Diamond (Pvt) Ltd* SC 38/22 is authority for the proposition that a litigant cannot blow hot and cold. Once a party acquiesces in a judgment, whether by complying with or acting upon it, that party may not later seek to impugn the very judgment it has honored. By making the payment the appellants objectively conducted themselves in a manner inconsistent with the continuation of their challenge and in

circumstances where they had two courses of action open to them; either to pay or to persist in resisting execution. The appellants opted to pay and their conduct amounted to acceptance of the judgment.

26. The appellants' conduct in paying the debt demonstrates unequivocal acquiescence in the default judgment. Their belated claim of payment "under protest" is an afterthought. Having complied with the judgment, the appellants cannot now be heard to challenge it.

27. In the light of the foregoing and having found that the appeal lacked merit, we accordingly dismissed it.

GWAUNZA JA **:** I agree

CHIWESHE JA **:** I agree

Messrs Mathonsi Ncube Law Chambers, appellants' legal practitioners

Dube-Tachiona & Tsvangirai, second respondent's legal practitioners